

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

Date Filed:

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CHRISTOPHER JACKSON,

Plaintiff,

Plaintiff designates
KINGS COUNTY

-against-

The basis of the venue is:
Place where cause of action arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
QUARSHIE (Shield # 21243) and POLICE OFFICER
PETERSON (Shield # 20688),

The plaintiff resides at:
Kings County, New York

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
June 10, 2024

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

/s/ Wale Mosaku

BY: WALE MOSAKU
Attorney for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No:

CHRISTOPHER JACKSON,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
QUARSHIE (Shield # 21243) and POLICE OFFICER
PETERSON (Shield # 20688),

Defendants.

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CHRISTOPHER JACKSON (hereinafter "plaintiff"), by his attorney(s) THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK (hereinafter "City"), POLICE OFFICER QUARSHIE (Shield # 21243) (hereinafter "Quarshie") and POLICE OFFICER PETERSON (Shield # 20688) (hereinafter "Peterson") upon information and belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law that sounds in the intentional tort(s) of false arrest/imprisonment.
2. This is also an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

3. The plaintiff is an African American male of full age, and a resident of the Borough of Kings, City and State of New York.
4. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant police officers, through its Police Department, namely the New York City Police Department ("NYPD"), and the actions of the defendant

police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

5. At the time of the incident complained of herein, each of the above-referenced defendant police officers was in the course of his duties. As such, the City is responsible for the above-referenced defendant police officers' actions, based upon the theory of *respondeat superior*.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

6. All conditions precedent to filing of this action have been complied with; on January 19, 2024, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2024PI002771.
7. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.
8. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

9. On November 27, 2023 at approximately 06:15 p.m., on Vernon Avenue between Lewis Avenue and Marcus Garvey Boulevard, in Brooklyn, New York (subject location), the plaintiff was falsely arrested and unlawfully searched without probable cause by the defendant officers.
10. Prior to his arrest, the plaintiff was lawfully seated in the driver's seat of his vehicle, which was lawfully parked by the curb, and conversing with some friends/acquaintances (who were standing on the sidewalk).
11. At that time, the defendant officers, who were in an unmarked black and/or dark colored NYPD vehicle, parked their vehicle alongside the plaintiff's

vehicle, made eye contact with the plaintiff, and asked “*what are you doing?*”

12. The plaintiff, taken aback, responded “*what do you mean?*”
13. The defendant officers then accused the plaintiff of “*moving*” within his vehicle by asking “*why are you moving?*”
14. The plaintiff responded that “*it’s not a crime to move while seated in a car*”.
15. In response to that, the defendant officers exited their vehicle, approached the seated plaintiff, and instructed him to exit his vehicle, stating “*we’re going to search you.*”
16. In response, the plaintiff protested, asking “*search me for what? I did not do anything.*”
17. The defendant officers then opened up the driver’s side door of the plaintiff’s vehicle, and instructed the plaintiff to exit said vehicle.
18. The plaintiff again protested, asking “*for what?*”, to which the defendant officers responded “*we want to search you*”.
19. Left with no choice, the plaintiff exited his vehicle, and was then escorted to the rear (trunk) of his car by the defendant officers.
20. The plaintiff continued to protest the defendant officers’ actions, and questioned the basis upon which they had arbitrarily decided to forcibly subject him to a search.
21. However, the defendant officers, who were at that juncture manhandling the plaintiff, continued to insist on searching the plaintiff without providing any reasonable justification to do so. In fact, the defendant officers informed the plaintiff that “*we can search you here or take you to the precinct after taking your car*”.
22. As such, left with no choice, and in light of the threats issued by the defendant officers to take him to a police precinct, the plaintiff was compelled, reluctantly, to allow the defendant officers to search his person.
23. Nothing illegal was recovered from the person of the plaintiff during the above-referenced unlawful search.

24. Following the unlawful search, the defendant officers entered into their vehicle, and left the scene.
25. At the time of the above-referenced incident, the defendant officers were employed by the defendant City of New York, and specifically, were in the course of their duties when they committed the above-referenced wrongful and intentional acts against the plaintiff. As such, the City of New York is responsible for said defendant officers actions, based upon the theory of *respondeat superior*.

CAUSE OF ACTION AGAINST THE DEFENDANT CITY OF NEW YORK: FALSE
ARREST AND FALSE IMPRISONMENT UNDER NEW YORK STATE LAW

26. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 25 of this complaint as though fully set forth herein.
27. The above-described respective arrest, detention and imprisonment of the plaintiff by the defendant officers were without just or probable cause, and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
28. As a result of the plaintiff's above-described false arrest and detention by the defendant officers, the plaintiff has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
29. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for their unlawful acts towards the plaintiff as described above.
30. Consequently, the plaintiff has been damaged and hereby demands compensatory damages in an amount to be proven at trial against the defendant City of New York.

CAUSE OF ACTION AGAINST EACH DEFENDANT OFFICER:
UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

31. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 30 of this complaint as though fully set forth herein.
32. That the defendant officers searched, or caused the plaintiff and/or his property to be searched without any individualized reasonable suspicion that he was concealing weapons or contraband.
33. As a result of the foregoing, the plaintiff and/or his property was/were subjected to an illegal and improper search.
34. As a result of the foregoing, the plaintiff was subjected to an illegal and improper search.
35. The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
36. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each defendant officer.

CAUSE OF ACTION AGAINST EACH DEFENDANT OFFICER: FALSE ARREST AND FALSE IMPRISONMENT UNDER 42 U.S.C § 1983/NEW YORK STATE LAW

37. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 36 of this complaint as though fully set forth herein.
38. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
39. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from

attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.

40. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendant officers.

**CAUSE OF ACTION AGAINST EACH DEFENDANT OFFICER: FAILURE TO
INTERVENE UNDER 42 U.S.C § 1983**

41. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 40 of this complaint as though fully set forth herein.
42. The defendant officers each had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
43. The defendant officers failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
44. As a consequence of each defendant officer's actions and/or omissions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated.
45. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each defendant officer.

WHEREFORE, the plaintiff prays for judgment against each defendant, jointly and severally, as follows: for compensatory damages in an amount to be proven at trial; for costs and expenses of suit herein, including his reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
April 10, 2024

LAW OFFICES OF WALE MOSAKU, P.C.

By: /s/ Wale Mosaku

Wale Mosaku
Attorney for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:
CHRISTOPHER JACKSON,

Plaintiff,

-against-

ATTORNEY CERTIFICATION
PURSUANT TO 22 NYCRR Part
130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER
QUARSHIE (Shield # 21243) and POLICE OFFICER
PETERSON (Shield # 20688),

Defendants.

-----X

The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the Courts of the State of New York. I do hereby provide this signed certification pursuant to 22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the Court in this action are not frivolous.

Dated: Brooklyn, New York
April 10, 2024

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

/s/ Wale Mosaku

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.

THOMAS JOHNSON,

Plaintiff(s),

-against-

THE CITY OF NEW YORK,

Defendant(s).

SUMMONS AND COMPLAINT

**LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994**

To:

**Service of a copy of the within
is hereby admitted.**

Dated:..... 202_

Attorney(s) for Defendant(s)
